

25NWCV02081 25NWCV02081

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-23

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Case Number: 25NWCV02081 Hearing Date: September 23, 2026 Dept: C

COREAS vs TOYOTA MOTOR

SALES U.S.A., INC.

CASE

NO.: 25NWCV02081

HEARING: 9/23/26

@ 9:30 AM

#9

TENTATIVE RULING

I.

Defendant TOYOTA MOTOR

SALES U.S.A., INC.'s motion to compel deposition attendance and testimony of Plaintiff

ELENA D. COREAS is GRANTED.

II.

Defendant TOYOTA MOTOR

SALES U.S.A., INC.'s motion to compel production of Plaintiff's vehicle for inspection is GRANTED.

III.

Sanctions in the amount

of \$720.00 are imposed upon Plaintiff and Plaintiff's counsel, jointly and severally, payable within 30 days.

Moving Party to give
NOTICE.

Background

This is a lemon law case involving a 2023 Toyota Corolla, VIN No.: JTDBCMFE4P3015362 ("Subject Vehicle"), which Plaintiff purchased on or about March 30, 2023.

Motion to Compel Deposition Attendance

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (CCP § 2025.450(a).) "The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice."

(CCP

§ 2025.450(b)(1).) The motion shall be accompanied by a meet and confer declaration. (CCP § 2025.450(b)(2).)

On June

2, 2026, Defendant served a Notice of Taking Deposition of Plaintiff Elena D. Coreas, with a request for the production of documents, setting Plaintiff's deposition for June 16, 2026 at 10:00 a.m. via videoconference. (Kuredjian Decl. ¶ 4; Exhibit A.) Defendant's notice requested that Plaintiff produce documents at the time of deposition. (Id.)

Plaintiff served objections to

Defendant's notice on June 9, 2026 stating Plaintiff and/or Plaintiff's counsel were unavailable. (Kuredjian Decl.

¶ 4; Exhibit B.) Defendant

emailed Plaintiff's Counsel requesting alternate dates. Plaintiff never responded. Defendant has attempted to secure the deposition of Plaintiff since March 31, 2026, with follow-up emails on April 6, May 4, May 13, May 26, June 4, June 9, and June 15, 2026. (Kuredjian Decl. ¶ 6-7.)

As of the filing of this motion, Defendant's counsel has yet to receive a response from Plaintiff's counsel regarding the availability of Plaintiff for a deposition. (Kuredjian Decl. ¶ 8.) Plaintiff's counsel argues that Defendant failed to meet and confer by telephone as required, but Plaintiff's counsel's offers no reason why counsel failed to respond to any of Defendant's seven emails. Additionally, Plaintiff's counsel failed to oppose to the instant motion in a timely manner.

Accordingly, the motion is GRANTED. Plaintiff is ordered to appear at the next noticed deposition to be scheduled at a mutually agreeable time between the parties and within 30 days.

Motion
to Compel Inspection of Vehicle

Code
of Civil Procedure section 2031.310 allows a party to compel a further response to a demand for inspection if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc. (CCP), § 2031.310, subd. (a).)

To
establish good cause, the burden is on the moving party to show: (1) relevance to the subject matter and (2) specific facts justifying discovery. (Glenfed Develop. Corp. v. Sup. Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117; see also Kirkland v. Sup. Ct. (Guess?, Inc.) (2002) 95 Cal.App.4th 92, 98.)

Here,
Defendant seeks to inspect Plaintiff's vehicle in order to evaluate the claims and defenses in this matter, but Plaintiff has not confirmed the inspection or meaningfully participated in Defendant's efforts to coordinate the inspection. (Kuredjian Decl., ¶ 3.)

Plaintiff fails to oppose this motion.

The

Court finds that good cause exists for inspection of Plaintiff's vehicle. An inspection will allow Defendant to investigate Plaintiff's claims, determine whether third party or outside influence had an impact on any alleged defects, safeguard against surprise, and develop defenses.

Accordingly,

the motion is GRANTED. Plaintiff is ordered to submit the Subject Vehicle for inspection within 30 days, absent an agreement by the parties to a longer period.

Sanctions

When

a party fails to permit an inspection demanded under Code of Civil Procedure section 2031.010 et seq., the Court may order compliance and may impose monetary sanctions against any party or attorney who unsuccessfully makes or opposes the motion, unless the Court finds substantial justification or other circumstances making the imposition of sanctions unjust.

Here,

sanctions in the reasonable sum of \$360.00 are imposed for each motion, for a total of \$720.00, upon Plaintiff and Plaintiff's counsel, jointly and severally, payable in 30 days.